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County of Alameda

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Deputy Clerk

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SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF ALAMEDA

GREEN SANDS INVESTMENT CLUB B,
LLC, a Delaware limited liability company,

Plaintiff,

v.

CRYPTO LOTUS FUND A, LP, a Delaware
limited partnership; JONAS LAUREN NORR,
an individual; and Does 1 through 100,
inclusive,

Defendants.

Case No.: 22CV008125

**DEFENDANTS' OBJECTIONS TO THE
DECLARATION OF OSCAR G. JIMENEZ,
ESQ. IN SUPPORT OF PLAINTIFF'S
OPPOSITION TO DEFENDANTS' MOTION
TO COMPEL ARBITRATION AND DISMISS
OR STAY JUDICIAL PROCEEDINGS AND
FOR ATTORNEY'S FEES, COSTS, AND
EXPENSES**

[C.C.P. §§ 1281.2, 1281.4]

Date: November 16, 2022
Time: 2:30 P.M.
Dept.: 518
Judge: Hon. Dennis Hayashi

1 Defendants CRYPTO LOTUS FUND A, LP, a Delaware limited partnership, and JONAS
2 LAUREN NORR, an individual, submit the following written objections to the Declaration of Oscar
3 G. Jimenez, Esq., in Support of Plaintiff's Opposition to Defendants' Motion to Compel Arbitration
4 and Dismiss or Stay Judicial Proceedings and for Attorney's Fees, Costs, and Expenses (the "Jimenez
5 Declaration").

6 The following portions of the Jimenez Declaration are objectionable for the following
7 reasons, and should be stricken:

8 **I. Paragraph 6:**

9 After the Complaint was served, Defendants' counsel, Sam Lieberman, contacted me
10 to discuss the possibility of settlement (and mediation), which I was told would only
11 be possible without a pending lawsuit against his clients. As such, we agreed to
dismiss the Complaint in exchange for an offer of settlement from Defendants.

12 Grounds for Objection: This statement is inadmissible because it is evidence of a statement
13 made in negotiation of settlement of Plaintiff's claims. (See Cal. Evid. Code § 1152(a).) The
14 statement is also incomplete in that it omits Plaintiff's admission that it dismissed its original
15 complaint after it "agreed to proceed with arbitration" and to "expedite the submittal of this matter
16 to JAMS." (Mov. Br. at 4 (quoting Klingsporn Decl. Ex. A);¹ see Cal. Evid. Code § 356.)

17 **II. Paragraph 7:**

18 Pursuant to Mr. Lieberman's request, we promptly dismissed our Complaint on
19 December 17, 2021 (entered by the Court on December 20, 2021); however, despite
20 several requests, we never received an offer of settlement from Mr. Lieberman as
21 promised, resulting in my letter dated January 19, 2022. Attached hereto as Exhibit
C is a true and correct copy of my January 19, 2022 letter to Mr. Lieberman.

22 Grounds for Objection: This statement is inadmissible because it is evidence of a statement
23 made in negotiation of settlement of Plaintiff's claims. (See Cal. Evid. Code § 1152(a).) The
24 statement is also incomplete in that it omits Plaintiff's admission that it dismissed its original
25 complaint after it "agreed to proceed with arbitration" and to "expedite the submittal of this matter
26 to JAMS." (Mov. Br. at 4 (quoting Klingsporn Decl. Ex. A); see Cal. Evid. Code § 356.)

27
28 ¹ "Mov. Br." and "Klingsporn Decl." refer, respectively, to Defendants' opening brief and the Declaration of
Gregory K. Klingsporn, both submitted on May 20, 2022.

1 **III. Paragraph 8:**

2 Upon receipt of my January 19 letter, Mr. Lieberman reiterated his position that his
3 client would make a “good faith” offer of settlement to Plaintiff which, once again,
4 never occurred. This was followed by Defendants’ all-too-familiar “radio silence”
5 resulting in the inevitable re-filing of Plaintiff’s Complaint against Defendants on
6 March 8, 2022.

7 Grounds for Objection: This statement is inadmissible because it is evidence of a statement
8 made in negotiation of settlement of Plaintiff’s claims. (See Cal. Evid. Code § 1152(a).) The
9 statement is also incomplete in that it omits Plaintiff’s admission that it dismissed its original
10 complaint after it “agreed to proceed with arbitration” and to “expedite the submittal of this matter
11 to JAMS.” (Mov. Br. at 4 (quoting Klingsporn Decl. Ex. A); see Cal. Evid. Code § 356.)

12 **IV. Paragraph 9:**

13 Plaintiff has been extremely prejudiced by Defendants’ unreasonable delay tactics
14 and blatant failure to comply with the terms of the Repayment Agreement, which
15 has been pending for almost two years (a year and 8 months), during the course of
16 which Plaintiff was forced to file its initial lawsuit, but was then misled into
17 dismissing said lawsuit under the subterfuge of Defendants’ promise of a reasonable
18 settlement offer, which was never received.

19 Grounds for Objection: This statement is inadmissible because it is evidence of a statement
20 made in negotiation of settlement of Plaintiff’s claims. (See Cal. Evid. Code § 1152(a).) The
21 statement is also incomplete in that it omits Plaintiff’s admission that it dismissed its original
22 complaint after it “agreed to proceed with arbitration” and to “expedite the submittal of this matter
23 to JAMS.” (Mov. Br. at 4 (quoting Klingsporn Decl. Ex. A); see Cal. Evid. Code § 356.)

24 **V. Paragraph 10:**

25 As a result, Plaintiff had no choice but to re-file its lawsuit (again) having never
26 received a reasonable offer of settlement, as promised, coupled with Defendants’
27 nonresponsiveness to my numerous requests **for over a month following my**
28 **dismissal** of the initial lawsuit, all of which is documented in my January 9, 2022
letter to Mr. Lieberman. See Exhibit C.

29 Grounds for Objection: This statement is inadmissible because it is evidence of a statement
30 made in negotiation of settlement of Plaintiff’s claims. (See Cal. Evid. Code § 1152(a).) The
31 statement is also incomplete in that it omits Plaintiff’s admission that it dismissed its original

1 complaint after it “agreed to proceed with arbitration” and to “expedite the submittal of this matter
2 to JAMS.” (Mov. Br. at 4 (quoting Klingsporn Decl. Ex. A); see Cal. Evid. Code § 356.)

3 ***

4 For the foregoing reasons, these portions of the Jimenez Declaration should be stricken and
5 not considered as evidence in opposition to Defendants’ motion to compel arbitration.

6 Respectfully submitted,

7
8 Dated: November 10, 2022

JORGENSEN, SIEGEL
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9 Of counsel:

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Gregory K. Klingsporn
Attorneys for Defendants

PROOF OF SERVICE BY E-MAIL
(CCP 1013a, 2015.5)

I declare that I am a citizen of the United States and that I am over the age of 18 years, employed in the County of San Mateo, and not a party to the within action; my business address is 1100 Alma Street, Suite 210, Menlo Park, CA 94025.

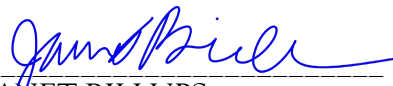
On November 10, 2022, I caused a copy of the following: **DEFENDANTS' OBJECTIONS TO THE DECLARATION OF OSCAR G. JIMENEZ, ESQ. IN SUPPORT OF PLAINTIFF'S OPPOSITION TO DEFENDANTS' MOTION TO COMPEL ARBITRATION AND DISMISS OR STAY JUDICIAL PROCEEDINGS AND FOR ATTORNEY'S FEES, COSTS, AND EXPENSES** to be sent from email address jlb@jsmf.com to persons at the email addresses listed below:

Bruce N. Furukawa (SBN 157303)
bruce@furukawacastles.com
Oscar G. Jimenez (SBN 195433)
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*Attorneys for Plaintiffs Green Sands
Investment Club B, LLC*

I did not receive within a reasonable time of the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing are true and correct. Executed at Menlo Park, California, on November 10, 2022.


JANET BILLUPS